

Prevention Of Collision On National Waterways Regulations, 2002

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Union of India - Act

Prevention Of Collision On National Waterways Regulations, 2002

UNION OF INDIA

India

Prevention Of Collision On National Waterways Regulations, 2002

Rule PREVENTION-OF-COLLISION-ON-NATIONAL-WATERWAYS-REGULATIONS-2002 of 2002

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Prevention Of Collision On National Waterways Regulations, 2002

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1624.

Ministries of shipping (Inland Waterways Authority of India) Noti. dated 30th November, 2004.- In exercise of the powers conferred by Section 35 of the Inland Waterways Authority of India Act, 1985 (

82 of 1985

), the Inland Waterways Authority of India, with the prior approval of the Central Government, hereby makes the following regulations for prevention of collision on national waterways, as under, namely:

1.

Short title and commencement.-

(1)

These regulations may be called the Prevention of Collision on National Waterways Regulations, 2002.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Scope and application.-

(1)

These regulations shall apply to all vessels on the National Waterways.

(2)

All vessels plying in the National Waterway shall adhere to these rules having regard to precautions required by the ordinary practice of Seamen and limitations of the vessel.

Chapter I

Definitions

3.

In these regulations, unless the context otherwise requires,

(a)

"Act" means the Indland Waterways Authority of India Act, 1985 (82 of 1985

);

(b)

"Authority" means Inland Waterways Authority of India constituted under Section 3 of the Act;

(c)

"Competent Officer" means an officer appointed as such by the Authority to be in incharge of a section of the National Waterways for the development management and maintenance;

(d)

"Length and breadth of a vessel" means maximum length and breadth of a vessel;

(e)

"Mechanically propelled vessel" means every description of vessel propelled wholly or in part by electricity, steam or other mechanical power;

(f)

"Sailing vessel" means any vessel under sail provided that propelling machinery if fitted, is not being used;

(g)

"Underway" means a vessel is not at anchor or made fast to the shore or aground;

(h)

"Vessel engaged in fishing" means any vessel fishing with nets, lines, trawls or other fishing apparatus which restrict manoeuvrability;

(i)

"Vessel not under command" means a vessel, which through some exceptional circumstances is unable to manoeuvre as required by these rules and is therefore unable to keep out of the way of another vessel;

(j)

"Vessel restricted in her ability to manoeuvre" means a vessel which from the nature of her work is restricted in her ability to manoeuvre as required by these rules and is therefore unable to keep out of the way of another vessel. The following vessels shall be regarded as vessels restricted in their ability to manoeuvre

(i)

A vessel engaged in laying, servicing or picking up a navigation, mark, submarine cable or pipeline;

(ii)

A vessel engaged in dredging, surveying or under water operations;

(iii)

A vessel engaged in towing operation which renders her unable to deviate from her course;

(k)

Vessles shall be deemed to be "in sight of one another" only when one can be observed visually from the other;

(l)

"Vessel" means every description of water craft, including small craft vessel under oars or sail, floating, equipment and non-displacement craft;

(m)

"Restricted visibility" means any condition in which visibility is restricted by fog, mist, heavy rainstorms, sandstorms or any other similar causes;

(n)

"Rules" means rules of the road;

(o)

Words used but not defined shall have the same meanings respectively assigned to them in the Act.

Chapter II

Steering And Sailing Rules

Part-I

Conduct of vessels in any condition of visibility

4.

Application.-

Regulations in this part apply in any condition of visibility.

5.

Look out.-

Every vessel shall at all times maintain a proper look-out by sight and hearing as well as by all available means appropriate in the prevailing circumstances and conditions so as to make a full appraisal of the situation and of the risk of collision. Vessels shall make use of searchlights to locate luminous marks used for channel marking.

6.

Safe speed.-

(1)

Every vessel shall at all times proceed at a safe speed so that she can take proper and effective action to avoid collision and grounding, and be stopped within a distance appropriate to the prevailing circumstances and conditions.

(2)

In determining a safe speed the following factors shall be among those taken into account

(a)

By all vessels

(i)

The state of visibility;

(ii)

The traffic density including concentration of fishing vessel or other vessels;

(iii)

The manoeuvrability of the vessel with special reference to stopping distance and turning ability, in the prevailing conditions;

(iv)

The state of the river, wind, current and the proximity of navigational hazards;

(v)

State and availability of shore, navigational aids and channel marking by day and night;

(vi)

Speed restrictions imposed by the waterway authority;

(vii)

The draught of the vessel in relation to available depth of water; and

(viii)

At nights, the presence of background light such as from the shore lights or from the back scatter of her own lights.

(b)

Additionally, by vessels with operational radar

(i)

The characteristics, efficiency of the radar equipment;

(ii)

The number, location and movement of vessels detected by radar; and

(iii)

The more exact assessment of the visibility that may be possible when radar is used to determine the range of vessels or objects in the vicinity.

7.

Risk of collision.-

(a)

Every vessel shall use all available means appropriate to the prevailing circumstance and conditions to determine if risk of collision exists. If there is any doubt such risk shall be deemed to exist.

(b)

In determining if risk of collision exists the following consideration shall be among those taken into account,

(i)

Such risk shall be deemed to exist if a compass bearing of an approaching vessel does not appreciably change and apparent distance from own vessel decreases;

(ii)

Such risk may sometimes exist even when an appreciable bearing change is evident, particularly when approaching a very large vessel or a tow or when approaching a vessel at close range; and

(iii)

For vessel not fitted with a compass, if the relative position remains unchanged.

8.

Action to avoid collision.-

(a)

Any action taken to avoid collision shall, if the circumstances of the case admit be positive, made in ample time and with due regard to the observance of good seamanship.

(b)

Any alteration of course or speed to avoid collision shall, if the circumstances of the case admit be large enough to be readily apparent to another vessel. A succession of small alteration of course and/or speed should be avoided.

(c)

If there is sufficient room, alteration of course alone may be the most effective action to avoid a close quarters situation provided that it is made in good time, is substantial and does not result in another close quarters situation.

(d)

Action taken to avoid collision with another vessel shall be such as to result in passing at a safe distance the effectiveness of the action shall be carefully checked until the other vessel is finally passed and clear.

(e)

If necessary to avoid collision or allow more time to assess the situation, a vessel shall slacken her speed or take the way off by stopping or reversing her means of propulsion.

9.

Narrow channels.-

(a)

A vessel proceeding along the course of a narrow channel shall keep as near to the outer limit of the channel which lies on her starboard side as is safe and practicable. A vessel of less than 10 metres in length or a sailing vessel shall not impede the passage of a vessel which can safely navigate only within the marked channel;

(b)

A vessel engaged in fishing shall not impede the passage of any other vessel in the navigable channel;

(c)

A vessel shall not cross a navigable channel if such crossing impedes the passage of vessel proceeding upstream or downstream along the navigable channel;

(d)

In a narrow channel when overtaking can take place only if the vessel to be overtaken has taken action to permit safe passing, the vessel intending to overtake shall indicate her intention by sounding the appropriate signals prescribed in

Regulation 34(b). The vessel to be overtaken shall if in agreement, sound appropriate signals prescribed in Regulation 34(b) and take action to permit safe passing. If in doubt she may sound the signal prescribed in Regulation 34(c). This regulation does not relieve the overtaking vessel of her obligation under Regulation 13;

(e)

A vessel nearing a bend or an area of a narrow channel where other vessels may be obscured by an intervening obstruction shall navigate with particular alertness and caution and shall sound the appropriate signal prescribed in Regulation 34(d); and

(f)

Every vessel shall, if the circumstances of the case admit, avoid anchoring in a narrow channel.

10.

Single lane traffic.-

When single lane traffic lane traffic is in force, vessels shall join the lane only when the traffic signal permits to do so. While in the lane, the vessels shall proceed with maximum permissible speed and clear the channel as quickly as possible. Vessels shall not stop or anchor in a traffic lane and shall exercise caution while joining or leaving the single lane to avoid collision with waiting vessels at anchor.

Part II ? Conduct Of Vessels In Sight Of One Another

11.

Application.-

Regulations in this part shall apply to a vessels in sight of one another.

12.

Sailing vessels.-

(a)

When two sailing vessels are approaching one another so as to involve risk of collision, one of them shall keep out of the way of the other as follows:

(i)

In a non-tidal river when one vessel is proceeding upstream and the other vessel proceeding downstream the vessel proceeding upstream shall keep out of the way of the other;

(ii)

When both are proceeding, upstream or downstream and in a tidal lagoon the vessel which is to windward shall keep out of the way of the vessel which is to leeward;

(iii)

A vessel which is running free shall keep out of the way of a vessel which is close-hauled; and

(iv)

A vessel which is close-hauled on the port tack shall keep out of the way of a vessel which is close-hauled on the starboard tack.

(b)

For the purposes of the regulation, "upstream" shall be deemed the direction against current and downstream the direction with the current. "Wind ward", side shall be deemed to be the side opposite to that of which the main sail or the largest fore and aft sail is carried.

13.

Overtaking.-

(a)

Notwithstanding anything contained in the regulations of this part any vessel overtaking any other shall keep out of the way of the vessel being overtaken;

(b)

A vessel shall be deemed to be overtaking when coming up with another vessel from a direction more than 22.5 degrees abaft her beam. That is, in such a position with reference to the vessel she is overtaking, that at night she would be able to see only the sternlight/towing light of that vessel but neither of her sidelights; and

(c)

Any subsequent alteration of bearing between two vessels shall not make the overtaking vessel a crossing vessel within the meaning of these rules or relieve her the duty of keeping clear of the overtaken vessel until she is finally passed and

clear.

14.

Head-on situation.-

When two mechanically propelled vessels are meeting on reciprocal or nearly reciprocal courses so as to invoke risk of collision each shall alter her course to starboard so that each shall pass on the port side of the other.

15.

Crossing situation.-

When two mechanically propelled vessels are crossing so as to involve risk of collision, the vessel which has the other on her own starboard side shall keep out of the way and shall, if the circumstances of the case admit avoid crossing ahead of the other vessel.

16.

Action by give-way vessel.-

Every vessel which is directed by these regulations to keep out of the way of another vessel shall, so far as possible take early and substantial action to keep well clear.

17.

Action by stand-on vessel.-

(a)

(i)

Where by any of these regulations one of two vessels is to keep out of the way, the other shall keep her course and speed;

(ii)

The later vessel may however take action to avoid collision by her manoeuvre alone, as soon as it becomes apparent to her that the vessel required to keep out of the way is not taking appropriate action in compliance with these regulations;

(b)

When from any cause, the vessel required to keep her course and speed finds herself so close that collision cannot be avoided by the action of the give-way vessel alone, she shall take such action as will best aid to avoid collision.

(c)

A vessel which takes action in a crossing situation in accordance with sub-paragraph (a) (ii) of this regulation to avoid collision with another vessel, shall if the circumstances of the case admit, not alter course to port for a vessel on her own port side; and

(d)

This regulation does not relieve the give-way vessel of her obligation to keep out of the way.

18.

Responsibilities of (between) vessels.-

Except where Regulations 9 and 13 otherwise requires,

(a)

A mechanically propelled vessel underway shall keep out of the way of:-

(i)

A vessel not under command;

(ii)

A vessel restricted in her ability to manoeuvre;

(iii)

A vessel engaged in fishing;

(iv)

A sailing vessel, vessel under oars or country boat; or

(v)

A vessel proceeding downstream by a vessel proceeding upstream; if the prevailing circumstances permit.

(b)

A sailing vessel under way shall keep out of the way of:-

(i)

A vessel not under command;

- (ii)
A vessel restricted in her ability to manoeuvre; and
- (iii)
A vessel engaged in fishing.
- (c)
A vessel engaged in fishing when underway shall, so far as possible, keep out of the way of:
 - (i)
A vessel not under command; and
 - (ii)
A vessel restricted in her ability to manoeuvre.

Part-III

Conduct Of Vessels In Restricted Visibility

19.

Application.-

- (a)
This regulation applies to vessels not in sight of one another when navigating in or near an area of restricted visibility.
- (b)
Every vessel shall make appropriate sound signals in accordance with Regulation 34 and exhibit lights while navigating in restricted visibility.
- (c)
Every vessel shall proceed at a safe speed adopted to the prevailing circumstances and conditions of restricted visibility. A mechanically propelled vessel shall have her engines ready for immediate manoeuvre.
- (d)
Every vessel shall have due regard to the prevailing circumstances and conditions of restricted visibility when complying with the regulation of this part.
- (e)
Except where it has been determined that risk of collision does not exist, every vessel which hears apparently forward of her beam the fog signal of another vessel or which cannot avoid a close-quarters situation with another vessel forward of her beam, shall reduce her speed, she shall if necessary take all her way off and in any event navigable with extreme caution until danger of collision is over.

Chapter III

Lights And Shapes

20.

Application.-

- (a)
Regulations in this chapter shall be complied with in all weathers.
- (b)
The regulations concerning lights shall be complied with from sunset to sunrise, and during such times no other lights shall be exhibited, except such, lights as cannot be mistaken for the lights specified in these rules or do not impair their visibility or distinctive character, or interfere with the keeping of a proper look-out.
- (c)
The lights prescribed by these regulations shall, if carried, also be exhibited from sunrise to sunset in restricted visibility and may be exhibited in all other circumstances when it is deemed necessary.
- (d)
The regulations concerning shapes shall be complied with by day.
- (e)
The lights and shapes unless otherwise specified in these regulations shall comply with the positioning and technical details as per the provisions of Annexure-I to International Regulations for prevention of collision at sea (1972).

21.

Definitions.-

- (a)

"Masthead light" means a white light placed over the fore and aft centerline of the vessel showing an unbroken light over an arc of the horizon of 22.5 degrees and so fixed as to show the light from right ahead to 22.5 degrees abaft the beam on either side of the vessel. This light shall be placed as far as practicable at height above the hull of not less than 3 metres for vessels of 20 metres or more in length and 2 metres for vessels of less than 20 metres in length.

(b)

"Sidelights" means a green light on the starboard side and a red light on the port side each showing an unbroken light over an arc of the horizon of 112.5 degrees and so fixed as to show the light from right ahead to 22.5 degrees abaft the beam on its respective side. In a vessel of less than 20 metres in length the sidelights may be combined in one lantern carried on the fore and aft centerline of the vessel. Sidelights shall be placed not less than 1 metre below the mast headlight.

(c)

"Stern light" means a white light placed as nearly as practicable at the stern showing an unbroken light over an arc of the horizon of 135 degrees and so fixed as to show the light 67.5 degrees from light aft on each side of the vessel.

(d)

"Towing light" means a yellow light having the same character as the "stem light" defined in paragraph (c) of this regulation.

(e)

"All-round light" means a light showing an unbroken light over an arc of the horizon of 360 degrees.

(f)

"Flashing light" means a light flashing at regular intervals.

22.

Visibility of lights.-

The lights prescribed in these regulations shall be visible at the following minimum ranges;

(a)

A vessel of 20 metres, or more in length, mast headlight, 3 miles, side light 2 miles stern lights 2 miles, towing light 2 miles, allround light 1 mile.

(b)

A vessel less than 20 metres in length, a mast headlight 2 miles and side light one mile. Stern light 1 mile, towing light 1 mile, white, red, green, or yellow allround light 1 mile.

Lights to be exhibited by vessels.

23.

Lights to be exhibited by mechanically propelled vessel under-way.-

(a)

A mechanically propelled vessel under way shall exhibit:

(i)

A mast headlight forward.

(ii)

Side lights.

(iii)

a stern light.

(b)

A mechanically propelled vessel of less than 10 metres in length in lieu of the lights prescribed in paragraph (a) may exhibit an allround white light, and shall if practicable also exhibit side lights or a combined lantern.

24.

Lights to be exhibited by towing and pushing vessels.-

(a)

A mechanically propelled vessel when towing or pushing shall exhibit:

(i)

Two mast headlights forward in a vertical line when the length of the tow exceeds 200 metres; Three such light in a vertical line. These lights will be in lieu of light prescribed in Regulation 23(a) (i). The light shall be placed not less than 1 metre apart and the lowest light placed at a height not less than 2 metres above the hull.

(ii)

Side lights.

(iii)

A stern light.

(iv)

A towing light in a vertical line above the stern light.

(b)

When a pushing vessel and a vessel being pushed ahead are connected in a composite unit, they shall be regarded as a mechanically propelled vessel and exhibit the lights prescribed in Regulation 23.

(c)

A vessel or object being towed shall exhibit.

(i)

Side lights.

(ii)

A stern light;

Provided that any number of vessels being towed or pushed in a group shall be lighted as one vessel.

(d)

A vessel being pushed ahead, not being part of a composite unit, shall exhibit at the forward end, side lights.

(e)

A vessel being towed astern shall exhibit a stern light at the forward end side lights.

(f)

Where from any sufficient cause, it is impracticable for vessel or object being towed to exhibit the lights prescribed in this regulation, all possible measures shall be taken to light the vessel or the object towed at least to indicate the presence of unlighted vessel or object.

25.

Lights to be exhibited by sailing, vessel and vessels under oars.-

(a)

A sailing vessel shall exhibit.

(i)

Side lights.

(ii)

A stern light.

(b)

In a sailing vessel of less than 20 metres in length the lights prescribed in paragraph (a) may be combined in one lantern carried at or near the top of the mast where it can be seen.

(c)

A sailing vessel underway may in addition to the lights prescribed in paragraph (a) of this regulation, exhibit at or near the top of the mast, where they can best be seen two allround lights in a vertical line, the upper being red and lower be green.

(d)

A sailing vessel less than 10 metres in length, a vessel under oars may exhibit lights prescribed in this regulations, but if she does not, she shall have ready at hand an electric torch or lighted lantern showing a white light which shall be exhibited in sufficient time to prevent collision.

26.

Lights to be exhibited by fishing vessels.-

(a)

A vessel engaged in fishing shall exhibit.

(i)

Two allround light in a vertical line the upper being red and the lower white and during day a shape consisting of two cones with their apexes together in a vertical line or a basket.

(ii)

When making way through the water in addition to the lights prescribed in (1) side lights, and a stern light.

(b)

A vessel less than 10 m in length, a vessel under oars may exhibit a lantern and shall have ready at hand an electric torch which shall be exhibited in sufficient time to prevent collision.

27.

Lights to be exhibited by vessels not under command or restricted in their ability to manoeuvre.-

(a)

A vessel not under command shall exhibit

(i)

Two alround red lights in a vertical line where they can best be seen by night.

(ii)

Two balls or similar shapes in a vertical line by day.

(iii)

When making way through the water; side lights and a stern light in addition to the lights prescribed in (i).

(b)

A vessel restricted in her ability to manoeuvre shall exhibit;

(i)

Three alround lights in a vertical, line, the highest and lowest of these shall be red and the middle light shall be white.

(ii)

Three shapes in a vertical line, the highest and lowest shapes shall be balls and the middle one a diamond.

(iii)

When making way through the water, mast headlights side lights and stem light in addition to the lights prescribed in (i).

(iv)

When at anchor, in addition to the lights prescribed in (i) and (ii) above lights and shapes prescribed in Regulation 30 for anchored vessel shall also be exhibited.

28.

Lights to be exhibited by vessel engaged in dredging.-

A vessel engaged in dredging, in addition to the lights in 27 (b) shall exhibit:

Two alround red lights or two balls in a vertical line to indicate the side on which obstruction exists.

29.

Lights to be exhibited by pilot vessel.-

A vessel engaged on pilotage duty shall exhibit:

(i)

At or near the mast head two alround lights in vertical line the upper white and the lower red;

(ii)

When under way, in addition side lights and stem light.

30.

Lights to be exhibited by anchored vessels and vessels aground.-

(a)

A vessel at an anchor shall exhibit:

(i)

In the fore, part, an alround white light or one ball by day.

(ii)

At or near the stern and at a lower level than the light in (i) an alround white light.

(b)

A vessel of less than 20 metres in length may exhibit one alround white light, where it can best be seen.

(c)

A vessel aground shall exhibit in addition to the lights prescribed in paragraph (a) or (b), where they can best be seen

(i)

Two all round red lights in a vertical line.

(ii)

Three balls in a vertical line by day.

(d)

A vessel of less than 10 metres in length shall have ready at hand and electric torch or lighted lantern showing a white light which shall be exhibited in sufficient time to warn the approaching vessels.

31.

Lights to be exhibited by hydrofoils and mechanized country craft.-

Where it is impracticable for a mechanized country craft or a hydrofoil to exhibit lights and shapes of the characteristics or in positions prescribed in the regulations she shall exhibit lights and shapes as closely similar in characteristics and position as is possible.

Chapter IV

Sound And Lights Signals

32.

Definition.-

(a)

The word "whistle" means any sound signalling appliances capable to producing the prescribed blast.

(b)

The term "short blast" means a blast of about one second duration.

(c)

The term "prolonged blast" means a blast of about 4 to 6 second duration.

(d)

The sound signal appliances unless otherwise specified in the regulations shall comply with the technical requirements as per the provisions of Annexure-III of the International Regulations for prevention of collision at sea (1972).

33.

Equipment for sound signals.-

A vessel of 20 metres or more in length shall be provided with a whistle and a ball and a vessel of 100 metres or more in length, in addition shall be provided with a gong.

34.

Manoeuvring and warning signals.-

(a)

Single vessel when vessels are in sight of one another a mechanically propelled vessel underway, when manoeuvring as authorised or required by these regulations, shall indicate her intentions by the following signals on her whistle

(i)

One short blast to mean "I am altering my course to starboard".

(ii)

Two short blasts to mean, "I am altering my course to port".

(iii)

Three short blast to mean "I am operating stern propulsion".

(b)

Overtaking vessels:

(i)

Two prolonged blast followed by one short blasts to mean "I intended to overtake you on your starboard side".

(ii)

Two prolonged blasts followed by two short blasts to mean "I intended to overtake you on your port side".

A vessel being overtaken shall indicate her agreement by the following signals on her whistle; one prolonged one short, one prolonged one short blast, in that order, if in doubt she may sound signals prescribed in paragraph (c).

(c)

When in doubt-When vessels in sight of one another are approaching each other and from any cause either vessel fails to understand the intentions or actions of the other or is in doubt whether sufficient action is being taken by the other to avoid collision the vessel in doubt shall immediately indicated such doubt giving at least 5 short and rapid blasts on the whistle, the signal may be supplemented by a light signal of at least 5 short and rapid flashes.

(d)

At bends-A vessel nearing bend or an area of a channel where other vessels may be obscured, shall sound one prolonged blast, such signal shall be answered with a prolonged blast by any approaching vessel.

35.

Sound signals in restricted visibility.-

In or near an area of restricted visibility, where by day or night, signals prescribed in this regulation shall be used as follows:

(a)

A mechanically propelled vessel making way through the water shall sound at intervals of not more than 2 minutes one prolonged blast.

(b)

A mechanically propelled vessel underway but stopped and making no way through the water shall sound at intervals of not more than 2 minutes. Two prolonged blasts in succession with an interval of about 2 seconds between them.

(c)

A vessel not under command, a vessel restricted in her ability to manoeuvre, a vessel constrained by her draught, vessel engaged in towing, fishing or pushing another vessel, shall at intervals of not more than 2 minutes three blasts in succession namely one prolonged followed by two short blasts.

(d)

A vessel at anchor shall at intervals of not more than one minute ring the bell rapidly for about 5 seconds. A vessel at anchor may in addition sound three blasts in succession namely one short one prolonged and one short blast to give warning on her position, and possibility of collision to any approaching vessel. A vessel aground shall give three separate and distinct strokes on the bell immediately before and after the rapid ringing of the bell.

(e)

A vessel of less than 10 metres in length shall not be obliged to give the abovementioned signals but shall make some other effective sound signal at intervals of not more than 2 minutes.

36.

Distress signals.-

When a vessel is in distress and requires assistance from other vessels or from shore, the following shall be the signals to be used or displayed by her either together or separately:

(a)

A continuous sounding of any sound signal apparatus.

(b)

A flag or a light waved in a circle to draw attention.

(c)

Flares on the deck.

(d)

"May day" transmitted by radio telephony.

(e)

International code of signal N.C.hoisted on the vessel.

Chapter V

Exemptions

37.

Any vessel (or class of vessel) provided that she complies with the requirement of the Inland Vessels Act, 1917, the keel of which is at corresponding stage of construction before the entry into force of these regulations may be exempted from compliance therewith of the following provisions until 2 years after the date of entry into force of these regulations:

(a)

The installation of lights with colour specifications and intensity as prescribed in Regulation 20 W.

(b)

Repositioning of mast headlights and side lights on vessels resulting from prescriptions of Regulation 21.

(c)

The installation of lights with ranges prescribed in Regulation 22.

38.

Exemption.-

Exemption in vessels or class of vessels provided that she complies with the requirement of the Inland Vessels Act, 1917, the keel of which is at corresponding stage of construction before the entry into force of these regulations may be exempted from compliance therewith of the provision for carriage of life boats until two years after the date of entry into force of these regulations provided that adequate life raft in lieu are provided on board

(a)

Fishing boats;

(b)

Cargo vessels:

Chapter VI

Suspension, Cancellation And Appeal

39.

Power to suspend and cancel endorsement on certificate of survey.-

(1)

The Competent Officer reserves the right to suspend forthwith the endorsement on certificate of survey of the vessel for a period not exceeding fifteen days in the case of contravention of any of the regulation mentioned hereinbefore at first instance.

(2)

In the case of repeated contravention the Competent Officer shall have the power to cancel the endorsement on certificate of survey of the vessel forthwith.

40.

Appeals.-

(1)

Any person aggrieved by an order of the Competent Officer issued under Regulation 3, may within ten days from the date on which he receives such order, appeal against it to the officer so designated.

(2)

The officer so designated shall cause notice of every such appeal to be given to the Competent Officer in such manner, as may be prescribed and after giving an opportunity to the Competent Officer and to the appellant to be heard, shall pass such order thereon as deems fit and his decision shall be final.

Chapter VII

Penalties And Legal Proceedings

41.

Penalty for contravening regulations of the Road for National Waterways.-

If any person contravenes any of the regulations of the Road as mentioned hereinbefore, he shall be punishable with fine which may extend to five hundred rupees for each contravention.

42.

Application of the provisions of Inland Vessels Act, 1917 (

1 of 1917

):-

Notwithstanding anything mentioned above, the provisions of Chapter VII of the Inland Vessels Act, 1917 (

1 of 1917

) shall also apply mutatis mutandis, to the mechanically propelled vessel making voyage on National Waterways as they apply to mechanically propelled vessels in any inland water.

Related AI tags, queries and research notes

Translation